



Bill Number: S.B. 1851

Farnsworth Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires the Administrative Office of the Courts, on or before December 31, 2026 and each year thereafter, to compile a report on the enforcement and collection of monetary obligations, including restitution, fines, fees, surcharges and assessments, broken down into the following categories for each obligation:
 - a) the amounts ordered and collected;
 - b) collection rates;
 - c) instances in which a person was incarcerated due to nonpayment, bench warrants or a finding of contempt, and the total days of incarceration served;
 - d) the costs of enforcement and collection; and
 - e) net collections.
2. Requires this report to be submitted to the Governor, the Senate President, the Speaker of the House, the Directors of JLBC and OSPB and the Secretary of State.
3. Renames the Peace Officer Training Equipment Fund as the Law Enforcement Equipment Fund (Fund).
4. Transfers administrative oversight of the Fund from the State Treasurer to the Arizona Criminal Justice Commission.
5. Allows monies in the Fund to be used for administrative costs.
6. Makes technical changes.

FARNSWORTH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1851
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 12-114, Arizona Revised Statutes, is amended
3 to read:

4 12-114. Surcharge on court authorized diversion programs for
5 traffic offenses; deposit

6 A. If a court authorizes individuals charged with civil or criminal
7 traffic offenses to attend a court authorized diversion program, including
8 a defensive driving school program, [it] [THE COURT] shall require the
9 assessment of a [nine-dollar] [\$9] surcharge on the fees charged by the
10 court authorized diversion programs. The surcharge applies to every
11 individual who attends a court authorized diversion program, including an
12 individual who holds a commercial driver license.

13 B. A court or a court authorized diversion program shall collect
14 the [nine-dollar] [\$9] surcharge and remit the surcharge to the supreme
15 court which shall deposit, pursuant to sections 35-146 and 35-147, [five
16 dollars] [\$5] of the surcharge in the judicial collection enhancement fund
17 and the remaining [four-dollars] [\$4] in the [peace officer training] [LAW
18 ENFORCEMENT] equipment fund established by section 41-1731.>>

19 <<Sec. 2. Section 12-116.10, Arizona Revised Statutes, is amended
20 to read:

21 12-116.10. Assessment; law enforcement equipment fund

22 A. In addition to any other penalty assessment provided by law, a
23 penalty assessment shall be levied in an amount of [four-dollars] [\$4] on
24 every civil penalty imposed and collected for a civil traffic violation
25 and fine, penalty or forfeiture for a criminal violation of the motor
26 vehicle statutes or for any local ordinance relating to the stopping,
27 standing or operation of a vehicle.

28 B. The court shall transmit the assessments collected pursuant to
29 this section and a remittance report of the fines, civil penalties and

1 forfeitures collected pursuant to this section to the county treasurer,
2 except that municipal courts shall transmit the assessments and the
3 remittance report of the fines, civil penalties and forfeitures to the
4 city or town treasurer.

5 C. The city, town or county treasurer shall transmit the assessment
6 and the remittance report to the state treasurer. The state treasurer
7 shall deposit the assessment in the ~~[peace officer training]~~ [LAW
8 ENFORCEMENT] equipment fund established by section 41-1731.

9 D. The court may mitigate all or part of the assessment in the same
10 manner and subject to the same limitations in the mitigation of a fine in
11 section 13-825, subsection B.>>

12 <<Sec. 3. Section 13-810, Arizona Revised Statutes, is amended to
13 read:

14 13-810. Consequences of nonpayment of fines, surcharges,
15 fees, assessments, restitution or incarceration
16 costs; report

17 A. In addition to any other remedy provided by law, including a
18 writ of execution or other civil enforcement, if a defendant who is
19 sentenced to pay a fine, a surcharge, a fee, an assessment or
20 incarceration costs defaults in the payment of the fine, surcharge, fee,
21 assessment or incarceration costs or of any installment as ordered, the
22 court, on motion of the prosecuting attorney or on its own motion, shall
23 require the defendant to show cause why the defendant's default should not
24 be treated as contempt and may issue a summons or a warrant of arrest for
25 the defendant's appearance.

26 B. In addition to any other remedy provided by law, including a
27 writ of execution or other civil enforcement, if a defendant who is
28 ordered to pay restitution defaults in the payment of the restitution or
29 of any installment as ordered, the court, on motion of the prosecuting
30 attorney, on petition of any person entitled to restitution pursuant to a
31 court order or on its own motion, shall require the defendant to show
32 cause why the defendant's default should not be treated as contempt and
33 may issue a summons or a warrant of arrest for the defendant's appearance.

34 C. In addition to any other remedy provided by law, including a
35 writ of execution or other civil enforcement, the court, on receipt of a
36 petition and issuance of an order to show cause, has jurisdiction to
37 preserve rights over all restitution liens entered pursuant to section
38 13-806, subsection B[7] and perfected pursuant to section 13-806,
39 subsection E.

40 D. At any hearing on the order to show cause the court, the
41 prosecuting attorney or a person entitled to restitution may examine the
42 defendant under oath concerning the defendant's financial condition,
43 employment and assets or on any other matter relating to the defendant's
44 ability to pay restitution.

45 E. If the court finds that the defendant has wilfully failed to pay
46 a fine, a surcharge, a fee, an assessment, restitution or incarceration
47 costs or finds that the defendant has intentionally refused to make a good

1 faith effort to obtain the monies required for the payment, the court
2 shall find that the default constitutes contempt and may do any of the
3 following:

4 1. Order the defendant incarcerated in the county jail until the
5 fine, surcharge, fee, assessment, restitution or incarceration costs, or a
6 specified part of the fine, surcharge, fee, assessment, restitution or
7 incarceration costs, is paid.

8 2. Refer the defendant for revocation of probation, parole or
9 community supervision as authorized by law.

10 3. Enter an order pursuant to section 13-812. The levy or
11 execution for the collection of a fine, a surcharge, a fee, an assessment,
12 restitution or incarceration costs does not discharge a defendant who is
13 incarcerated for nonpayment of the fine, surcharge, fee, assessment,
14 restitution or incarceration costs until the amount of the fine,
15 surcharge, fee, assessment, restitution or incarceration costs is
16 collected.

17 4. Order the defendant to perform community restitution.

18 F. If the court finds that the default is not wilful and that the
19 defendant cannot pay despite sufficient good faith efforts to obtain the
20 monies, the court may take any lawful action including:

21 1. Modify the manner in which the restitution, fine, surcharge,
22 fee, assessment or incarceration costs are to be paid.

23 2. Enter any reasonable order that would assure compliance with the
24 order to pay.

25 3. Enter an order pursuant to section 13-812. The levy or
26 execution for the collection of a fine, a surcharge, a fee, an assessment,
27 restitution or incarceration costs does not discharge a defendant
28 incarcerated for nonpayment of the fine, surcharge, fee, assessment,
29 restitution or incarceration costs until the amount of the fine,
30 surcharge, fee, assessment, restitution or incarceration costs is
31 collected.

32 G. If a fine, a surcharge, a fee, an assessment, restitution or
33 incarceration costs are imposed on an enterprise it is the duty of the
34 person or persons authorized to make disbursement from the assets of the
35 enterprise to pay them from those assets, and their failure to do so shall
36 be held a contempt unless they make the showing required in subsection A
37 or B of this section.

38 H. If a defendant is sentenced to pay a fine, a surcharge, a fee,
39 an assessment, restitution or incarceration costs, the clerk of the
40 sentencing court, on request, shall make the defendant's payment history
41 available to the prosecutor, victim, victim's attorney, probation
42 department and court without cost.

43 [I. ON OR BEFORE DECEMBER 31, 2026 AND EACH YEAR THEREAFTER, THE
44 ADMINISTRATIVE OFFICE OF THE COURTS SHALL SUBMIT A REPORT TO THE GOVERNOR,
45 THE PRESIDENT OF THE SENATE AND THE SPEAKER OF THE HOUSE OF
46 REPRESENTATIVES, THE DIRECTOR OF THE JOINT LEGISLATIVE BUDGET COMMITTEE
47 AND THE DIRECTOR OF THE GOVERNOR'S OFFICE OF STRATEGIC PLANNING AND

1 BUDGETING AND SHALL PROVIDE A COPY OF THE REPORT TO THE SECRETARY OF STATE
2 ON THE ENFORCEMENT AND COLLECTION OF RESTITUTION, FINES, FEES, SURCHARGES
3 AND ASSESSMENTS UNDER THIS SECTION. THE REPORT MUST INCLUDE, FOR EACH
4 CATEGORY OF MONETARY OBLIGATION, ALL OF THE FOLLOWING:

5 1. THE AMOUNTS ORDERED AND COLLECTED.

6 2. COLLECTION RATES.

7 3. INSTANCES IN WHICH A PERSON WAS INCARCERATED DUE TO NONPAYMENT,
8 INCLUDING PURSUANT TO A BENCH WARRANT OR A FINDING OF CONTEMPT, AND THE
9 TOTAL DAYS OF INCARCERATION SERVED.

10 4. ENFORCEMENT AND COLLECTION COSTS.

11 5. NET COLLECTIONS.]>>

12 Sec. 4. Section 31-281, Arizona Revised Statutes, is amended to
13 read:

14 31-281. Transition program; report; definition

15 A. The department shall establish a transition program that
16 provides eligible inmates with transition services in the community for ~~up~~
17 ~~to~~ NOT MORE THAN ninety days. The department shall administer the
18 transition program and contract with private or nonprofit entities to
19 provide eligible inmates with transition services and shall procure
20 transition services pursuant to title 41, chapter 23.

21 B. The director shall adopt rules to implement this article. The
22 rules shall include:

23 1. Eligibility criteria for receiving a contracted entity's
24 transition services. To be eligible, at a minimum, an inmate shall:

25 (a) Not have been convicted of a sexual offense pursuant to title
26 13, chapter 14 or a violation of title 13, chapter 17.

27 (b) Not have been convicted of a violent crime as defined in
28 section 13-901.03, unless the inmate was convicted of assault, aggravated
29 assault or robbery.

30 (c) Not have any felony detainers.

31 (d) Agree in writing to provide specific information after the
32 inmate is released. The department shall use the information to prepare
33 the report prescribed by subsection D, paragraph 3 of this section.

34 (e) Have made satisfactory progress by complying with all
35 programming on the inmate's individualized corrections plan as determined
36 by the department.

37 (f) Be classified by the department as minimum or medium custody as
38 determined by an objective risk assessment.

39 (g) Not have been found in violation of any major violent rule
40 during the inmate's current period of incarceration or in violation of any
41 other major rule within the previous six months. For the purposes of this
42 subdivision, an accumulation of minor rule violations does not equal a
43 major rule violation.

44 2. A requirement that each contracted entity train mentors or
45 certify that mentors are trained.

46 3. A requirement that the services offered to an inmate include
47 psychoeducational counseling and case management services as determined by

1 the department. The counseling and services may include substance abuse
2 treatment, anger management, cognitive behavioral therapy, parenting
3 skills and family reunification training, further education and job
4 placement.

5 4. A requirement that an inmate may be released pursuant to this
6 article only after the victim has been provided notice and an opportunity
7 to be heard. The department shall provide notice to a victim who has
8 provided a current address or other contact information. The notice shall
9 inform the victim of the opportunity to be heard on the early release.
10 Any objection to the inmate's early release must be made within twenty
11 days after the department has mailed the notice to the victim.

12 C. In awarding contracts under this section the department shall
13 comply with section 41-3751.

14 D. The department shall:

15 1. Conduct an annual study to determine the recidivism rate of
16 inmates who receive a contracted entity's services pursuant to this
17 article. The study shall include the recidivism rate of inmates who have
18 been released from incarceration for a minimum of three years after
19 release.

20 2. Evaluate the inmate and provide the information to the
21 contracted entity.

22 3. Submit a written report to the governor, the president of the
23 senate and the speaker of the house of representatives on or before
24 ~~July 31~~ NOVEMBER 30 of each year and provide a copy of this report to the
25 secretary of state AND THE DIRECTOR OF THE JOINT LEGISLATIVE BUDGET
26 COMMITTEE. The report may be submitted electronically. The report shall
27 contain the following information:

28 (a) The recidivism rate of inmates who receive services pursuant to
29 this article, including the recidivism rate of inmates who have been
30 released from incarceration for a minimum of three years after release.

31 (b) The number of inmates who received services pursuant to this
32 article.

33 (c) The number of inmates who were not provided services pursuant
34 to this article and who were on a list waiting to receive services.

35 (d) The types of services provided.

36 (e) The number of inmates who received each type of service
37 provided.

38 (f) THE COST REDUCTIONS TO THE DEPARTMENT THAT ARE DIRECTED TO THE
39 TRANSITION PROGRAM PURSUANT TO THIS ARTICLE. FOR THE PURPOSES OF THIS
40 PARAGRAPH, THE REDUCTION RATE MAY NOT BE LESS THAN \$17 PER INMATE PER DAY.

41 (g) THE NUMBER OF PARTICIPANTS WHO DID NOT RECEIVE AN EARLY RELEASE
42 UNDER THE TRANSITION PROGRAM.

43 4. Provide information about the transition program to all inmates
44 who are not serving a life sentence on admission to prison and to any
45 inmate who is potentially eligible for the transition program six months
46 before the inmate's eligibility date. The information must include all of

1 the admission requirements to the transition program, including the
2 disqualifying factors under this section.

3 E. Notwithstanding subsection B, paragraph 1 of this section, if an
4 inmate agrees to comply with any condition that is established and
5 required by section 41-1604.07, subsection F, has been convicted of the
6 possession or use of marijuana pursuant to section 13-3405, subsection A,
7 paragraph 1, possession or use of a dangerous drug pursuant to section
8 13-3407, subsection A, paragraph 1, possession or use of a narcotic drug
9 pursuant to section 13-3408, subsection A, paragraph 1 or possession or
10 use of drug paraphernalia pursuant to section 13-3415, subsection A and is
11 not concurrently serving another sentence for an offense that is not
12 listed in this subsection, the inmate is eligible for and shall be
13 released to enter the transition program. The director may not exclude an
14 inmate who is eligible for the transition program pursuant to this
15 subsection because the inmate does not have a place to reside before being
16 released, except that the director shall exclude an inmate who has any of
17 the following:

18 1. Previously been convicted of a violent crime as defined in
19 section 13-901.03 or an offense listed in title 13, chapter 14 or 35.1.

20 2. A felony detainer.

21 3. Been found to be in violation of a major violent rule during the
22 inmate's current period of incarceration or to be in violation of any
23 other major rule within the previous six months. For the purposes of this
24 paragraph, an accumulation of minor rule violations does not equal a major
25 rule violation.

26 4. Previously been released pursuant to this section and violated a
27 term of the inmate's release.

28 5. Failed to achieve functional literacy as required by section
29 41-1604.07, subsection F, unless the inmate is enrolled in a program that
30 prepares the inmate to achieve functional literacy.

31 6. Been classified by the department as close or maximum custody as
32 determined by a current and objective risk assessment.

33 7. Refused enrollment in or been removed for poor behavior from a
34 major self-improvement program within the previous eighteen months unless
35 the inmate has subsequently enrolled in and completed the major
36 self-improvement program.

37 F. For the purposes of this section, "recidivism" means
38 reincarceration in the department for any reason.

39 Sec. 5. Section 31-284, Arizona Revised Statutes, is amended to
40 read:

41 31-284. Transition program fund

42 The transition program fund is established consisting of ~~the~~ monies
43 collected pursuant to section 31-254, subsection D, paragraph 3 and
44 subsection E, paragraph 3 and section 31-285, ~~subsection C~~. The
45 department shall administer the fund to pay for any costs related to the
46 administration of the transition program and for transition program
47 services. Monies in the fund are subject to legislative appropriation and

1 are exempt from the provisions of section 35-190 relating to lapsing of
2 appropriations.

3 Sec. 6. Section 31-285, Arizona Revised Statutes, is amended to
4 read:

5 31-285. Transition program release; report

6 A. An inmate who enters a transition program pursuant to this
7 article shall be released from confinement three months earlier than the
8 inmate's earliest release date based on the inmate's risk and need and
9 rules adopted pursuant to section 31-281. An inmate who the director
10 determines has participated in the program but who is not low risk shall
11 not be released from confinement earlier than the inmate's earliest
12 release date.

13 ~~B. On or before September 30 of each year, the department shall~~
14 ~~prepare a report that details the cost reductions to the department that~~
15 ~~are directed to the transition program pursuant to this article and the~~
16 ~~number of participants who did not receive an early release under the~~
17 ~~transition program. The reduction rate shall equal at least seventeen~~
18 ~~dollars per inmate per day. The department shall submit a copy of its~~
19 ~~report to the governor, the president of the senate and the speaker of the~~
20 ~~house of representatives and shall provide a copy of this report to the~~
21 ~~director of the joint legislative budget committee and the secretary of~~
22 ~~state.~~

23 ~~C.~~ B. The state treasurer shall deposit any cost reductions that
24 are identified pursuant to ~~subsection B of this~~ section 31-281, SUBSECTION
25 D, PARAGRAPH 3, SUBDIVISION (f) in the transition program fund established
26 by section 31-284 for the purpose of providing transitional services.

27 Sec. 7. Section 41-710.03, Arizona Revised Statutes, is amended to
28 read:

29 41-710.03. Erroneous convictions fund

30 A. The erroneous convictions fund is established consisting of
31 monies appropriated to the fund by the legislature. The department of
32 administration shall administer the fund. Monies in the fund are
33 continuously appropriated and are exempt from the provisions of section
34 35-190 relating to lapsing of appropriations.

35 B. The department of administration shall use the monies deposited
36 in the erroneous convictions fund to fund claims brought pursuant to title
37 13, chapter 38, article 36.

38 C. ANY STATE AGENCY, BOARD, COMMISSION OR DEPARTMENT MAY NOT USE
39 MONIES FROM ANY FUND OR SOURCE OTHER THAN THE ERRONEOUS CONVICTIONS FUND
40 TO PAY ANY REIMBURSEMENT OR COMPENSATION THAT IS AWARDED PURSUANT TO TITLE
41 13, CHAPTER 38, ARTICLE 36. THIS STATE IS NOT LIABLE FOR ANY AMOUNT TO
42 PAY ANY REIMBURSEMENT OR COMPENSATION AWARDED PURSUANT TO TITLE 13,
43 CHAPTER 38, ARTICLE 36 IN EXCESS OF THE MONIES AVAILABLE IN THE ERRONEOUS
44 CONVICTIONS FUND.

1 Sec. 8. Heading change

2 The article heading of title 41, chapter 9, article 1, Arizona
3 Revised Statutes, is changed from "CIVIL RIGHTS DIVISION AND CIVIL RIGHTS
4 ADVISORY BOARD" to "CIVIL RIGHTS DIVISION".

5 Sec. 9. Repeal

6 Section 41-1401, Arizona Revised Statutes, is repealed.

7 Sec. 10. Title 41, chapter 9, article 1, Arizona Revised Statutes,
8 is amended by adding a new section 41-1401, to read:

9 41-1401. Civil rights division; definition

10 A. THE CIVIL RIGHTS DIVISION WITHIN THE DEPARTMENT OF LAW IS
11 ESTABLISHED.

12 B. FOR THE PURPOSES OF THIS CHAPTER, "DIVISION" MEANS THE CIVIL
13 RIGHTS DIVISION WITHIN THE DEPARTMENT OF LAW.

14 Sec. 11. Section 41-1641, Arizona Revised Statutes, is amended to
15 read:

16 41-1641. Corrections fund; uses; prior approval; exemption;
17 transfer

18 A. The corrections fund is established and consists of monies
19 received from the distribution provided pursuant to section 42-3104. The
20 state department of corrections shall administer the fund. Monies in the
21 fund are subject to legislative appropriation.

22 B. Monies in the corrections fund may be expended by:

23 1. The director of the department of administration for major
24 maintenance, construction, lease, purchase, renovation or conversion of
25 corrections or state operated juvenile facilities subject to the prior
26 approval of the joint committee on capital review and the legislature.

27 2. The director of the state department of corrections for costs
28 incurred in the minor maintenance and the operations of corrections
29 facilities subject to the prior approval of the legislature.

30 3. The director of the department of juvenile corrections for costs
31 incurred in the minor maintenance and the operations of state operated
32 juvenile facilities subject to the prior approval of the legislature.

33 C. Notwithstanding any law to the contrary and except as provided
34 in subsection B of this section:

35 1. The director of the state department of corrections shall enter
36 into an agreement with the director of the department of administration
37 for the expenditure of monies for the maintenance of corrections
38 facilities.

39 2. The director of the department of juvenile corrections shall
40 enter into an agreement with the director of the department of
41 administration for the expenditure of monies for the maintenance of state
42 operated juvenile facilities.

43 D. Monies in the fund are exempt from the provisions of section
44 35-190 relating to lapsing of appropriations.

45 E. The director of the state department of corrections shall
46 transfer ~~two million five hundred thousand dollars~~ \$12,500,000 from the

1 corrections fund annually to the department of corrections building
2 renewal fund established by section 41-797.

3 <<Sec. 12. Section 41-1731, Arizona Revised Statutes, is amended to
4 read:

5 41-1731. Law enforcement equipment fund; exemptions

6 A. The ~~[peace officer training]~~ [LAW ENFORCEMENT] equipment fund is
7 established consisting of monies deposited pursuant to sections 12-114 and
8 12-116.10. The ~~[state treasurer]~~ [ARIZONA CRIMINAL JUSTICE COMMISSION]
9 shall administer the fund. Monies in the fund may be used only for ~~[peace~~
10 ~~officer]~~ [LAW ENFORCEMENT] equipment [AND ADMINISTRATIVE COSTS].

11 B. The state treasurer shall invest and divest monies in the fund
12 as provided by section 35-313, and monies earned from investment shall be
13 credited to the fund.

14 C. Monies in the fund:

15 1. Do not revert to the state general fund at the end of the fiscal
16 year.

17 2. Are exempt from the provisions of section 35-190 relating to
18 lapsing of appropriations.

19 3. Are subject to legislative appropriation.>>

20 <<Sec. 13. Section 41-1732, Arizona Revised Statutes, is amended to
21 read:

22 41-1732. Law enforcement equipment fund advisory commission;
23 membership; duties; recommendations

24 A. The ~~[peace officer training]~~ [LAW ENFORCEMENT] equipment fund
25 advisory commission is established consisting of the following members:

26 1. One member of the senate who is appointed by the president of
27 the senate.

28 2. One member of the house of representatives who is appointed by
29 the speaker of the house of representatives.

30 3. The director of the department of public safety or the
31 director's designee.

32 4. One member who is appointed by the Arizona association of chiefs
33 of police.

34 5. One member who is appointed by the Arizona sheriffs association.

35 6. One member who is appointed by the director of the Arizona state
36 troopers association.

37 7. One member who is appointed by the director of the Arizona
38 police association.

39 B. Members who are appointed pursuant to subsection A, paragraphs
40 4, 5, 6 and 7 of this section serve three-year terms. The members of the
41 commission shall annually elect a chairperson and vice chairperson from
42 among the voting members. The [ADVISORY] commission shall meet on the
43 call of the chairperson but at least once each fiscal year. No actions
44 may be taken without a quorum present. Members who are appointed pursuant
45 to subsection A, paragraphs 1 and 2 of this section shall serve as
46 advisory nonvoting members of the [ADVISORY] commission.

1 C. Members are not eligible to receive compensation but members who
2 are appointed pursuant to subsection A, paragraphs 4, 5, 6 and 7 of this
3 section are eligible for reimbursement of expenses pursuant to title 38,
4 chapter 4, article 2.

5 D. The advisory commission may use the facilities and the staff of
6 the Arizona criminal justice commission.

7 E. The advisory commission may enter into interagency agreements
8 with the Arizona criminal justice commission and other agencies for
9 advisory commission business.

10 F. On or before December 1 of each year, the [ADVISORY] commission
11 shall submit written recommendations to the president of the senate, the
12 speaker of the house of representatives, the governor and the chairpersons
13 of the senate commerce and public safety committee and the house of
14 representatives judiciary and public safety committee, or their successor
15 committees, on the allocation each fiscal year of monies in the [peace
16 officer training] [LAW ENFORCEMENT] equipment fund established by section
17 41-1731. The [ADVISORY] commission shall provide a copy of the
18 recommendations to the secretary of state.>>

19 Sec. 14. Repeal

20 Section 41-3026.11, Arizona Revised Statutes, is repealed.

21 Sec. 15. Laws 2022, chapter 311, section 10, as amended by Laws
22 2024, chapter 213, section 7, is amended to read:

23 Sec. 10. Effective date

24 Section 41-1712, Arizona Revised Statutes, as amended by Laws 2022,
25 chapter 311, section 3, and title 41, chapter 12, article 4.1, Arizona
26 Revised Statutes, as added by Laws 2022, chapter 311, section 5, are
27 effective from and after June 30, ~~2027~~ 2028.

28 Sec. 16. Retroactivity

29 Section 41-710.03, Arizona Revised Statutes, as amended by this act,
30 applies retroactively to from and after December 31, 2025.

31 Enroll and engross to conform

32 Amend title to conform

DAVID C. FARNSWORTH

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06/11/2026

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C: JV

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